PLUGGING THE LEAKS

A new central legislation aims to end the old scourge of exam paper scams for govt jobs, with heavy punishment and penalties

By Amitabh Srivastava

On January 30, a Central Bureau of Investigation (CBI) special court sentenced former Railway Recruitment Board (RRB) chairman Satendra Mohan Sharma and nine others to five years of rigorous imprisonment in an examination paper leak case going back to 2010. The conviction of Sharma et al was not the only such case in the first month of 2024. There were at least three other such cases in which arrests were made.

Cheating in exams for recruitment to public sector jobs is a problem endemic to India. Whether it is an examination for the recruitment of police constables in Bihar (which saw 1.8 million applicants) or teacher eligibility tests in Rajasthan, question paper leaks have been a bane in at least 15 states in the past five years. Such leaks have reportedly affected the chances of over 10 million job aspirants. Several states—Uttarakhand, Rajasthan, Gujarat, Chhattisgarh, Jharkhand, Uttar Pradesh, Andhra Pradesh and Odisha—have passed anti-cheating laws in their respective domains. A central legislation to check the menace, though, had long been overdue.

That wait ended on February 5, when Union minister Jitendra Singh introduced the Public Examinations (Prevention of Unfair Means) Bill, 2024. Parliament passed it on February 9, President Droupadi Murmu gave her assent to the bill and the government notified it on February 12.

The legislation aims to check unfair practices such as 'leakage of question paper or answer key', 'directly or indirectly assisting the candidate', and 'tampering with computer network' and makes all such offences 'cognisable, non-bailable and non-compoundable'. Under its purview will be all exams conducted by the Union Public Service Commission, Staff Selection Commission, RRBs, Institute of Banking Personnel Selection, central ministries or departments and their attached and subordinate offices, National Testing Agency and any other authority notified by the Centre. All service providers—organisations and personnel--engaged by the public examination authority for the



SEEKING JUSTICE A protest against the Bihar PSC exam paper leak in Patna, Dec. 7, 2022

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